

MASTER SERVICES AGREEMENT

between

NOVACLOUD TECHNOLOGIES, INC. ("Vendor")

and

BRIGHTPATH RETAIL GROUP, LLC ("Client")

Effective Date: October 1, 2026

1. Parties and Recitals

This Master Services Agreement (the "Agreement") is entered into as of October 1, 2026 (the "Effective Date"), by and between NovaCloud Technologies, Inc., a Delaware corporation with its principal place of business at 440 Market Street, Suite 900, San Francisco, CA 94105 ("Vendor"), and BrightPath Retail Group, LLC, a New York limited liability company with offices at 300 Park Avenue, New York, NY 10022 ("Client"). Vendor provides cloud-based enterprise resource planning and point-of-sale software services (the "Services") to enterprise customers. Client desires to subscribe to the Services on the terms set forth herein.

2. Term and Auto-Renewal

The initial term of this Agreement shall be twelve (12) months from the Effective Date (the "Initial Term"). Thereafter, this Agreement shall **automatically renew for successive twelve (12) month periods** unless either party provides written notice of non-renewal. Client shall pay all fees for any renewal term in which notice is not received by Vendor at least thirty (30) days prior to the end of the then-current term. **Note: industry standard is a sixty (60) day opt-out window.**

3. Fees and Payment Terms

Client shall pay Vendor a base subscription fee of USD \$12,500 per month, payable in advance on the first day of each calendar month. Implementation fees of USD \$35,000 shall be due upon execution. Fees not paid within fifteen (15) calendar days of the invoice date shall accrue interest at a rate of one and one-half percent (1.5%) per month, which the parties acknowledge represents an annualized rate of eighteen percent (18%). Vendor reserves the right to suspend Services for non-payment continuing more than ten (10) days after notice.

4. Service Level Commitments

Vendor shall use commercially reasonable efforts to maintain Service availability of 99.5% during each calendar month, excluding scheduled maintenance. If availability falls below 99.0% in any month, Client shall be entitled to a service credit equal to five percent (5%) of the monthly fee for that month. Scheduled maintenance shall be performed between 10:00 PM and 4:00 AM Pacific Time on

Saturdays or Sundays, with at least forty-eight (48) hours prior written notice to Client.

5. Termination and Exit

Either party may terminate this Agreement for material breach by the other party if such breach is not cured within thirty (30) days of written notice. Client may terminate for convenience at any time; provided, however, that **Client shall pay Vendor an early termination fee equal to ninety (90) days of pro-rated subscription fees** plus any outstanding implementation costs. Upon termination, Vendor shall provide Client with a single data export in CSV format within thirty (30) days of the termination effective date.

6. Confidentiality

Each party acknowledges that it may receive Confidential Information (as defined below) from the other party. "Confidential Information" means any non-public information disclosed by one party to the other, whether oral, written, or electronic, that reasonably should be understood to be confidential given its nature and the circumstances of disclosure. The receiving party shall not disclose Confidential Information to any third party and shall use at least the same degree of care to protect such information as it uses to protect its own confidential information of similar nature, but in no event less than reasonable care.

7. Indemnification

Client shall indemnify, defend, and hold harmless Vendor from and against any and all third-party claims, losses, liabilities, damages, judgments, and expenses (including reasonable attorneys' fees) arising out of or relating to Client's use of the Services, Client Data, or Client's breach of this Agreement. Vendor shall indemnify Client for third-party claims that the Services infringe a valid United States patent, copyright, or trademark. THIS SECTION STATES THE ENTIRE INDEMNIFICATION OBLIGATION OF THE PARTIES. **Note: this clause provides unlimited mutual indemnification with no cap on liability.**

8. Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING WITHOUT LIMITATION LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS INTERRUPTION. EXCEPT FOR (A) BREACHES OF CONFIDENTIALITY, (B) CLIENT'S PAYMENT OBLIGATIONS, OR (C) GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT TO VENDOR IN THE TWELVE (12) MONTHS PRIOR TO THE EVENT GIVING RISE TO THE CLAIM.

9. Intellectual Property License

Subject to the terms of this Agreement, Vendor grants Client a limited, non-exclusive, non-transferable, non-sublicensable license to access and use the Services during the Term solely for Client's internal business operations. Vendor shall retain all right, title, and interest in and to the

Services, including all modifications, enhancements, custom configurations, and derivative works, **including any customizations developed at Client's request and expense.**

10. Data Protection and Security

Vendor shall maintain reasonable administrative, technical, and physical safeguards designed to protect Client Data from unauthorized access, use, or disclosure. Vendor shall conduct or obtain an annual SOC 2 Type II audit and provide a copy of the report to Client upon request. **Note: this Agreement does not include a Data Processing Addendum (DPA), does not specify data breach notification timelines, and does not address GDPR or CCPA obligations, though Client processes customer personal data through the Services.**

11. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflicts-of-law principles. Any dispute arising out of or relating to this Agreement shall be resolved exclusively by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, with the seat of arbitration in Wilmington, Delaware. Judgment on the award rendered by the arbitrator may be entered in any court of competent jurisdiction.

12. Entire Agreement; Amendments

This Agreement, including all exhibits and schedules hereto, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, proposals, or communications, whether oral or written. No amendment or modification to this Agreement shall be effective unless in writing and signed by an authorized representative of each party.

13. Signature

IN WITNESS WHEREOF, the parties have executed this Master Services Agreement as of the Effective Date.

NOVACLOUD TECHNOLOGIES, INC.

By: _____

Name: Sarah Chen

Title: VP of Sales

Date: October 1, 2026

BRIGHTPATH RETAIL GROUP, LLC

By: _____

Name: Michael Rodriguez

Title: Chief Operating Officer

Date: October 1, 2026